FREE LEGAL GUIDE #7

Understanding POCSO

A Guide for the Accused

The reversed burden, bail difficulties, special courts,
and defence options under POCSO 2012

Advocate Akash Chikate & Associates

Bombay High Court | District Courts, Pune

LLM — Science & Technology Laws (First Class Distinction) | Diploma in Cyber Laws

WhatsApp: +91 8698400302

www.advocateakashchikate.com

Understanding POCSO: A Guide for the Accused and Their Families

The Protection of Children from Sexual Offences Act, 2012 (POCSO) is among the most stringent criminal statutes in India. It contains a reversed burden of proof — once penetrative sexual assault is alleged, the accused must prove their innocence. Sentences range from 7 years to life imprisonment, and bail is extremely difficult to obtain. This guide explains what POCSO means for the accused and their families.

WARNING: POCSO charges are the most serious sexual offence allegations under Indian law. Do not attempt to handle this without an experienced criminal lawyer. Contact legal counsel within hours — not days — of arrest or complaint.

THE KEY FEATURES OF POCSO

● Reverse Burden of Proof (Section 29 POCSO)

Once the prosecution establishes that a sexual assault occurred and that the accused had contact with the child, the law presumes the accused is guilty. The accused must then prove their innocence. This is the opposite of the normal presumption of innocence.

● Child — Anyone Below 18 Years

POCSO covers all persons below 18 years of age, regardless of consent. Even consensual sexual activity between adolescents (where one is below 18) falls under POCSO. The concept of 'consent' has no legal relevance under POCSO.

● Special Courts for Trial

POCSO cases are tried in designated Special Courts. Trials are typically conducted in camera (closed-door). The child's identity and statements are confidential. The child is examined only once to minimise trauma.

● Mandatory Reporting (Section 19 POCSO)

Any person aware of a POCSO offence is legally obligated to report it to the police. Failure to report is itself an offence under Section 21 POCSO.

BAIL IN POCSO CASES

Bail in POCSO cases is extremely difficult. Under Section 31 POCSO, which applies Section 439 CrPC (now Section 483 BNSS) strictly, courts are very reluctant to grant bail. However, bail is not impossible. Courts have granted bail in POCSO cases where:

- The accused has no prior criminal record and is a first-time offender
- The allegation appears to be motivated (e.g., by a family dispute or custody battle)

- The accused is a minor themselves, or very young (below 21)
- The medical evidence is inconsistent with the allegation
- Delay in filing the complaint raises questions about authenticity
- The accused is the sole breadwinner and family would face extreme hardship
- Long period of incarceration has already occurred without trial progress

COMMON DEFENCE ARGUMENTS IN POCSO CASES

● False Allegation Due to Family Dispute

A significant number of POCSO cases arise from family disputes — particularly where a minor child has been coached by one parent to allege offences against a relative of the other parent. The defence must demonstrate the motive and the lack of medical corroboration.

● Medical Evidence Does Not Support the Allegation

A medical examination of the child is conducted early in every POCSO case. Where the medical report does not support the alleged offence, this is a powerful defence argument. Your lawyer will engage with the medical evidence in detail.

● Inconsistencies in the Child's Statement

Children are examined before a Magistrate under Section 164 BNSS and before the Special Court. Inconsistencies between the initial statement, the 164 BNSS statement, and trial testimony are important and can be raised in cross-examination.

● Age of the Accused

If the accused is a juvenile (below 18 years), the case is handled by the Juvenile Justice Board under the Juvenile Justice (Care and Protection of Children) Act, 2015. The procedure is rehabilitative, not purely punitive.

● Alibi Defence

If the accused can prove they were elsewhere at the time of the alleged offence, this is a complete defence. Documentary evidence — CCTV, mobile tower location, ticket records — can be extremely valuable in establishing an alibi.

IMMEDIATE STEPS FOR FAMILIES OF THE ACCUSED

- ■ Contact an experienced criminal lawyer with POCSO trial experience within hours
- ■ Do NOT contact the complainant, child, or complainant's family — it will be seen as intimidation
- ■ Preserve all evidence that the accused was elsewhere at the relevant time
- ■ Collect character witnesses — neighbours, employers, community leaders
- ■ Review all previous communications between the accused and the complainant's family
- ■ Document the history of any family dispute that may explain a false allegation

■ Prepare for a long legal process — POCSO trials are typically 1-3 years in duration

POCSO cases require a specialist criminal lawyer with experience in sexual offence trials, forensic evidence evaluation, and Bombay High Court bail jurisdiction. The reversed burden of proof means that the defence must be active, organised, and well-prepared from day one — not reactive. Every day without legal representation is a disadvantage.

Need Legal Help? Contact Us Now

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✉ **WhatsApp (Preferred): +91 8698400302**

📞 **Call: +91 8411982241**

✉ **Email: contact@advocateakashchikate.com**

www.advocateakashchikate.com

Office No. 202-203, Ekbote Complex, Revenue Colony, Shivajinagar, Pune

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